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ALLIES AND ENEMIES: PRO-KURDISH PARTIES IN TURKISH POLITICS, 1990–94

The crisis consists precisely in the fact that the old is dying and the new cannot be born; in this interregnum a great variety of morbid symptoms appear.

—Antonio Gramsci
Selections from the Prison Notebooks

Preventing the development of an ethnic Kurdish cultural and political movement has been a priority of the Turkish state since the Kurdish-led Shaykh Said Rebellion of 1925.¹ Nevertheless, beginning around 1959 this effort was steadily if slowly undermined, and events of the past ten years suggest that it has indeed failed. Not only have Kurdish activists gained some measure of international recognition for themselves and for the concept of Kurdish ethnic rights,² but promoting the notion of specifically Kurdish cultural rights has almost become a standard litany for a wide array of Turkish civic and state actors, from Islamist political parties to business organizations, human-rights groups, prime ministers, and mainstream newspaper columnists. Although the separatist Kurdistan Workers Party (PKK) and its insurgency against Turkey have claimed a great deal of academic and popular attention, it is these diffuse but public re-considerations of minority rights taking place within legitimate Turkish institutions have contributed the most to the sense that past policies of coping with the “Kurdish reality” are ultimately unsustainable, and that it may be difficult, if not impossible, to return to the climate of earlier years, when discussions of ethnic difference were suppressed, limited to the private realm, or confined to the fringes of radical politics.

The most explicit and broadly debated effort to re-negotiate the status of Kurds in the republic within the parameters of legal activism has come from a series of pro-Kurdish political parties, the first of which was the Halkın Emek Partisi (HEP, or People’s Labor Party). Founded in June 1990 by a group of people including eleven members of the Turkish Parliament,³ the HEP’s often-volatile public meetings and outspoken promotion of Kurdish political and cultural rights created concern among many bureaucratic and elected officials that the group was a mouthpiece for the PKK,⁴ and the party faced constant pressure from police, public prosecutors, and many members of Parliament. Yet the HEP managed to play a prominent part in Turkish

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politics for several years, and it can be argued that the party achieved a certain level of success. No political party in Turkish Republican history had ever sustained parliamentary representation while promoting formal recognition of a Kurdish people as its central political platform.⁵ The HEP was later closed by the Constitutional Court in July 1993, but the party's supporters founded the Demokrasi Partisi (DEP) to take its place. Even after the DEP was closed in 1994 and pro-Kurdish party members lost their seats in Parliament, the party's re-formation as the Halkın Demokrasi Partisi (People's Democracy Party, or HADEP), HADEP's participation in the December 1995 national election, and its turbulent but insistent presence in politics through the local and national elections of 1999 suggested that a Kurdish political "house" had been built in the Turkish political system, and that even if its inhabitants were arrested, new ones would move in.

The new pro-Kurdish⁶ voice in Turkey and the concurrent attempts to suppress it have fueled an often-bitter debate over the status of pro-Kurdish politics in Turkey, sometimes serving as a measure of the viability of Turkish democracy itself. In 1993, one American observer, citing a recent visit to Turkey in which he saw the "head of the Kurdish parliamentary group" debating the chief of the gendarmerie on television, would testify to the Commission on Security and Cooperation in Europe that "any and all views" could be discussed in Turkey. Testimony by another observer, however, prompted a director of the commission to wonder aloud how this could be, given that "materials dealing with Kurdish ethnic identity and its cultural history" were "continuing to this day to be confiscated."⁷ Evidence to support both positions could be found in government and state behavior, which between 1990 and 1993 appeared highly inconsistent. On the one hand, the existence of the HEP, along with President Turgut Özal's meetings with Iraqi Kurdish leaders and the repeal of the prohibition of Kurdish in public places, seemed to signify a willingness to try a new approach to Kurdish issues in Turkey. On the other hand, the obstacles and threats that HEP members faced—particularly in the larger context of the military's strong-arm tactics in the mostly Kurdish southeastern part of the country, along with various court decisions limiting the publication of pro-Kurdish material—suggested continued state resistance to any overt demonstrations of Kurdish political identity.

Although these contradictory tactics concerning Kurdish rights have sometimes been seen as representing bizarre or dysfunctional policies (one analyst concluded that Turkish state behavior was "schizophrenic"⁸), I argue in this paper that they can more usefully be taken as evidence that a complex and subtle struggle is occurring within the Turkish political establishment over how to treat Kurdish identity politics. While some state actors continue to promote and enforce policies crafted around the belief that ethnic heterogeneity threatens the unity, if not the existence, of the republic, others have moved to incorporate an openly multi-ethnic discourse into the framework of mainstream politics under the rubric that suppressing alternative voices would weaken Turkish democracy and fuel separatism. The existence of such a struggle suggests not only that the Turkish state is less monolithic than has been assumed, but also that a more intimate association between pro-Kurdish and mainstream Turkish actors has existed than either Turkish or Kurdish nationalist discourse would have us believe.⁹ It is undeniable that, by and large, state actors attempted to discourage and suppress pro-Kurdish parties such as the HEP and its successor, the DEP. But a close examination of these parties' history indicates that along with

many moments of conflict came important moments of accommodation between pro-Kurdish politicians and powerful members of the Turkish political establishment. These “moments” provided critical support to pro-Kurdish politicians’ struggle for political legitimacy and helped sustain their presence in the Turkish political arena.

This paper consists of two main parts, each subdivided into three sections. Part 1 sketches a brief history and lays out the basic problem. I suggest here that the emergence of an explicit and public struggle over the public expression of a Kurdish identity evolves out of a long-held tension between two fundamental pillars of Turkish official ideology: a form of Turkish nationalism which preferentialized Turkish ethnic identity and liberal democracy. Especially since the early 1970s, I argue, officials had prioritized Turkish national interests over those of full democracy. The formation of the HEP and its pro-Kurdish platform, couched within the discourse of democracy, constituted a direct challenge to this paradigm. But in contrast to the PKK, which has attacked the Turkish system from outside legitimate political institutions, the HEP attempted to re-make official ideology and policies by working from within. To many Turkish officials and state representatives, this distinction seemed irrelevant. These institutions and individuals, as I outline, employed the full force of their powers to suppress the parties.

In Part 2, I examine why those seeking to suppress pro-Kurdish politics were not entirely successful and, in broader terms, how we can re-assess recent pro-Kurdish politics in Turkey as a period of struggle not only between state agencies and pro-Kurdish activists but between different representatives of the Turkish state. While the public prosecutor’s office, police, and other agencies of the state attempted to suppress the parties, their efforts were increasingly compromised by the behavior of elected officials, especially those in the statist, center-left descendent of Mustafa Kemal Atatürk’s Republican People’s Party, the Sosyal Demokrat Halkçı Parti (SHP, or Social Democrat Populist Party). I argue that this struggle within the establishment over what to do about the HEP and other pro-Kurdish politicians created sufficient space for pro-Kurdish politics to gain a tenuous foothold in the Turkish political system. Specifically, I describe this struggle through the prism of three key events: first, the division with the SHP over how to respond to pro-Kurdish deputies’ attendance at an international Kurdish conference; second, the SHP’s 1991 election alliance with the HEP; and, third, a so-called *fezleke* crisis in which the public prosecutor’s efforts to lift pro-Kurdish deputies’ parliamentary immunity and put them on trial were stymied by members of Parliament. These conflicts within the Turkish political establishment itself—conflicts in which both “sides” drew upon a discourse of democracy and national preservation—gave pro-Kurdish politicians a small but legitimized space in which to bring what constituted revolutionary discussion into the realm of mainstream politics. These conflicts also blocked state agencies both from enforcing their traditional policies of quieting openly Kurdish politics, and from moving in a new direction.

THE REPUBLICAN TENSION: TURKISH NATIONALISM, KURDISH IDENTITY, AND TURKISH DEMOCRACY

Following the war of independence and the establishment of the republic in 1923, Turkish officials embarked on a project of what James Scott has called authoritarian

high-modernism, in which progressive but non-democratic elites attempt to re-map the new country using “radically simplified designs for social organization.”¹⁰ The cultural and ideological underpinnings of this new social organization were Turkish nationalism, which strongly emphasized the country’s Turkish culture and ethnic roots, downplaying and even suppressing religious or ethnic groups who voiced alternative sources of community. Although non-Muslim minorities such as Jews and the remaining Christian populations in the republic were explicitly protected by law, so-called Muslim minorities were not recognized as such and therefore received no special treatment, preferential or discriminatory. Physically, Kurds look no different from Turks, and those who adopted the Turkish mother tongue and either assimilated into or joined the Turkish national project faced little formal discrimination. Conversely, open demonstrations of a Kurdish (or other minority) identity, such as speaking Kurdish or celebrating traditional Kurdish holidays, were strongly discouraged under the principle of *milliyetçilik* (nationalism).¹¹

This fearful attitude toward ethnic minorities is common to new states presiding over invented nations, as analysts from Ernest Gellner to Partha Chatterjee have argued,¹² but ethnic exclusivity was not an inevitable outcome of the formation of the republic. Kurds had freely represented themselves in the 1920–22 Turkish Grand National assemblies as Kurdish tribal leaders,¹³ and Article 88 of the 1924 constitution had laid the groundwork for a potentially inclusive understanding of national identity by acknowledging the existence of racial variety. “With regards to citizenship,” the article read, “everyone in Turkey is called a Turk without discrimination on the basis of religion or race.”¹⁴ A potential evolution toward civic nationalism was halted, however, by the Kurdish-led Shaykh Said Rebellion of 1925 and the measures used to suppress it. The rebellion fueled fears of a division of the republic along the lines of the 1920 Treaty of Sèvres, which promised Kurds a separate state, and therefore encouraged the institutionalization of authoritarian nationalism, as Robert Olson and others have argued.¹⁵ After the rebellion, fledgling notions of a civic understanding of Turkish nationalism were superseded—in fact if not in constitutional edict—by the notion that the territorial integrity of the republic must be protected through ethnic commonality; Turkish leaders saw the presence of a “Kurdish people” within Turkey’s border as a clear territorial threat.¹⁶

A brief sketch of the history of the democratic ideal in Turkish government indicates, nevertheless, that democratic principles have been and have remained an important component of the ideology of the state. To Turkey’s early leaders, democratic government was part and parcel of being Western—or, as Mustafa Kemal said in 1925, “a state of society which is entirely modern and civilized, in every sense and in every way.”¹⁷ The democratic provisions of the 1924 constitution remained mostly on paper, but it was important simply that they were there, and more, that the basis for sustained one-party rule was not. During the authoritarian rule of the Republican People’s Party (RPP), “both constitutionally and electorally, a democratic facade was carefully maintained, so much so that the transition to multi-partyism in 1946 required not a single change in the Constitution and only relatively minor changes in other laws.”¹⁸ In the landmark 1950 national elections, the Democrat Party (DP) won 53.4 percent of the vote against the RPP’s 39.8 percent, bringing the DP into power

and heralding a new period of multi-party politics for Turkey. This era has been interrupted three times (1960, 1971, and 1980) by military coups.

Between the election of the DP in 1950 and the coup of 1971, dramatic demographic and social changes such as urban migration and increased university enrollment embedded state agencies in a new social landscape shaped as much by student activists and populist leaders as by Kemalist elites. Although the DP was forcibly removed from office by a military coup in 1960, the years following the coup and the return of civilian government were some of the more liberal in Turkey's history: the 1961 constitution, structured closely along the lines of the European Convention on Human Rights,¹⁹ introduced proportional representation and a bill of civil rights, and a variety of student and political associations flourished. For the first time, the ideological supremacy of Turkish nationalism faced a substantial challenge from political demands for pluralist democratization. But after the "coup by memorandum" of 1971, Turkish officials backed away from full democratization, in particular by limiting freedom of speech,²⁰ and in the decades following, official policies toward public expressions of Kurdish identity were largely subsumed within the imperatives of Turkish nationalism. In official discourse, democracy became something that could survive in Turkey only within carefully prescribed limits, as General Kenan Evren's speech to the nation on 12 September 1980 enunciated: "The goal of the operation that has been undertaken . . . is to re-establish the authority and existence of the state and to do away with the causes that are preventing the democratic order from functioning."²¹ The 1982 constitution granted the state extensive powers to restrain democratic expression if national unity was perceived to be threatened.²² In a departure from previous legislation, Turkish was now declared the mother tongue (as opposed to the official language) of all citizens of Turkey, and certain languages, including Kurdish, were restricted through a new set of laws.²³ In this atmosphere, general use of the word "Kurd," let alone "Kurdistan," might well be viewed as constituting treason. Reinforced through policies of emergency-rule laws granting the military essentially free rein in the southeast, it was an approach bolstered by the activities of the separatist PKK throughout the 1980s.

THE CHALLENGE FROM WITHIN: HEP AND PRO-KURDISH POLITICS

The creation of the HEP marked the onset of a new phase in Turkish-Kurdish relations that had begun in the late 1980s but had not really captured public or political attention as such. The end of the Cold War renewed attention to Turkey's role as a democratic model, forcing a succession of Turkish state representatives into the awkward position of trying to explain to the international community why Turkish democracy necessitated repression of Kurdish political identity. Domestically, reconciling an espousal of democratic principles with the suppression of Kurdish political and social expression also became increasingly difficult. As Hamit Bozarslan has detailed, throughout the 1980s Turkish public consciousness of the country's Kurdish population increased.²⁴ Clashes between Turkish soldiers and the PKK placed the "Kurdish question" high on the Turkish national agenda, as did the exodus to Turkey of Kurds

who fled the Iraqi Ba^cthist regime in 1988. An explosion of new, private media in Turkey began talking about such events in ways that state-controlled TV had not been able to do. Parliament also added to the new voices: early parliamentary elections held on 29 November 1987 brought a handful of outspoken pro-Kurdish deputies to Ankara. By the late 1980s, state agencies no longer had the cultural power to enforce an ideology at odds not only with demographic realities, but also with their own long-time emphasis on the principle of democratic government. Political parties, in turn, increasingly began to reflect the diversity of political voices that existed within the different religious and ethnic groups that constituted Turkish society.

The HEP was founded on 7 June 1990 by eleven members of Parliament who had been expelled from or had left the SHP (more on this later). Their goal was nothing short of radical, for they sought to alter the premises of a form of Turkish nationalism that had been promoted for many decades. Nevertheless, they sought to accomplish this from within the political system itself, and, when possible, by using democratic discourse also promulgated by Turkish officials. As established members of Parliament,²⁵ the party's first generation of leaders was aware of the boundaries of tolerated speech. In the first year or so of its existence, the HEP deputies avoided red-flag words such as "Kurdistan" and called the HEP a party for "all of Turkey."²⁶ Five months after the party was founded, the HEP's chairman, Fehmi Işıklar, defined the party's ideal membership for the *Turkish Daily News*: "We are a party of the masses. Our right line extends to 'democrat' but our left line stops before armed action. We are inviting the people between these two lines to join us."²⁷ The distinction between the HEP and the renegade PKK was carefully if implicitly established in the HEP's program, which stated that the group aimed at "solving the Kurdish problem through peaceful and democratic methods in line with the Universal Declaration of Human Rights, the European Convention on Human Rights, and the statutes of the Helsinki Final Document."²⁸

But the HEP's pro-Kurdish colors were evident, nevertheless, from its membership, party program, activities, and public statements. The majority (although not all) of its members were Kurdish, and most originated from the southeast. In addition to the deputies, the new party had the support of several prominent Kurdish personalities, including the writer and activist Musa Anter. Only one page of the HEP's first party program was explicitly devoted to the Kurdish problem, but in the context of modern Turkish politics even this was something very new. The HEP, the program asserted, believed that unless the Kurdish problem was solved, democracy in Turkey could not be fully implemented. It continued:

Today, to propose the existence of "the Kurdish People" is reason for a party to be closed. . . . In order to solve the Kurdish Problem, it is first of all necessary for all of the legal, administrative and social obstacles that prevent free debate on this problem to be removed.²⁹

More generally, the program labeled the 1982 constitution an "obstacle" to democratization, argued that "policies of oppression and assimilation" were being carried out in the east and southeast, and criticized Turkish political life as dominated by a "racist and chauvinist nationalist" approach.³⁰ Members of the HEP also challenged state policies in speeches and their use of public space. A series of public meetings

organized in southeastern cities including Batman and Diyarbakir, where PKK and Turkish military activity had curbed normal political activities, attracted a great deal of press and official attention—not only were such events unusual and, in the eyes of local authorities, a potential threat to public safety, but HEP leaders at the meetings (attended by as many as 10,000 people) openly broached the “Kurdish question,” saying it constituted “the greatest obstacle to democratization in Turkey” and that it “wasn’t a problem that could be solved by decree from the top down” but necessitated democratic debate.³¹ Such remarks (and meetings) became a standard element of the HEP’s political repertoire.

As the HEP sought to enunciate and even define the will of disfranchised Kurds, issues such as “the people’s right to self-determination” began to take verbal precedence over the unity of the republic. A steady rise in attacks on Kurdish party members throughout 1990 and 1991 and an increasing number of violent clashes between police and civilians in the southeast contributed to the party’s evolution away from its early, relatively moderate stance and toward a more explicitly pro-Kurdish platform. In a more substantial challenge than existed in its 1990 program, the HEP’s 1992 program stated:

HEP remains devoted until the end to the principle of the “People’s Fundamental Right to Self-Determination” in the solving of the Kurdish Problem. In this framework it will wholeheartedly support, without any reservations . . . every means of reaching a solution including a referendum, a federation, and similar solutions that are developed by the people.³²

Another sign of the party’s shift away from its more accommodating platform was a new effort by some of the HEP’s members (particularly those outside Parliament) to re-cast the party’s history as part of a grander Kurdish narrative. In a two-part series on the HEP published in the pro-Kurdish *Yeni Ülke* newspaper, A. Cabbar Gezici, a member of the party’s Istanbul Regional Administration Committee, wrote that “the dynamism of the struggle in K . . . [urdi]stan gave birth to HEP.”³³ At the national level, Işıklar’s speech at a party congress in June 1991 highlights the transformation: “There are circles that have attempted to brand HEP in the narrow definition of a Kurdish party ever since it was founded,” he said. “We are the party of the suppressed—within this framework, we are proud of being branded as a Kurdish party.”³⁴ Several days later, in an interview published in the *Turkish Daily News*, he repeated that the HEP’s leaders were “not uncomfortable” with the designation “Kurdish party” because “it [is] the Kurds whose human rights are most infringed upon.”³⁵ This public acknowledgment of the HEP as a “Kurdish party” represented a marked departure from the party’s consistent efforts throughout the year to deny the narrow categorization, even while it appealed to the cause of Kurdish rights.

Similarly, the HEP’s publicly espoused devotion to non-violence—crucial for its survival within the Turkish political system—also began to waver after the 1991 elections, which ushered younger, more radical, and less experienced Kurdish deputies into the national arena. New HEP deputies brought (at least) informal contacts with the PKK into the party; PKK flags and symbols such as pictures of the PKK leader Abdullah Öcalan appeared at HEP meetings and demonstrations.³⁶ While most HEP leaders consistently emphasized that violence would not solve the problems of Kurds

in Turkey,³⁷ the party found it difficult to translate this into outright condemnation of the PKK. The nature of the relationship between pro-Kurdish politicians and the PKK became particularly problematic after the formation of the Demokrasi Partisi (DEP), established in May 1993 by a group that included most of the HEP's parliamentary leadership, who resigned from the HEP in anticipation of a court verdict to close the party. The DEP is generally viewed as a "continuation" of the HEP under a new name (a tactic often used by political parties in Turkey to circumvent legal restrictions), and the two group's platforms were essentially the same, but the DEP often behaved in a more confrontational manner and with less sensitivity for mainstream Turkish public opinion than its predecessor. Under the DEP, pro-Kurdish leaders became increasingly divided over how much support to voice for the PKK, and a division emerged between a moderate flank and a more radical group led by Diyarbakir deputy Hatip Dicle.³⁸ At least several pro-PKK deputies had now, in the words of several Turkish politicians, "taken shelter under Parliament's roof,"³⁹ while another two dozen more moderate pro-Kurdish deputies from the HEP and the SHP had mounted a very public stand in support of a new approach to the state's relationship with its Kurdish populations.

THE RESPONSE: EFFORTS TO SUPPRESS PRO-KURDISH POLITICS

Many representatives of the state tried to prevent pro-Kurdish deputies from taking such a stand. Entrusted with wide-ranging missions that included the preservation of the territorial integrity of the nation, fighting militant Kurdish separatism, and maintaining and enforcing the law, prosecutors, police, and many members of Parliament saw the HEP and pro-Kurdish politicians as violating the spirit if not the law of the ideological and legal codes they were expected to uphold. To these members of the political system, supporting the HEP was little or no different from supporting the PKK, and the HEP was accused of precisely this. Police announcements and interrogations, legal indictments, and parliamentary condemnation of the parties indicate that the state interpreted the HEP's public assertion of Kurdish identity as a serious ideological and territorial challenge that necessitated an equally public and well-supported refutation. In the ensuing struggle between state agencies and members of the HEP, thousands of HEP supporters would be jailed and more than one hundred pro-Kurdish officials would be killed by so-called unknown assailants,⁴⁰ and Turkey's international reputation would be badly scarred by what many observers perceived as anti-democratic behavior on the part of Turkish state agencies.

Police and security forces began paying close attention to the HEP soon after the party was founded in June 1990.⁴¹ On 17 July 1990, as mentioned earlier, a number of HEP members began a symbolic nine-day march from Istanbul to Diyarbakir in support of "an honorable and free life." Several days later, Turkish police arrested a number of people participating in the march, arguing that "separatist propaganda" was being distributed by demonstrators in an HEP bus.⁴² On 26 July in the eastern city of Batman, where security forces said permission for the march had not been obtained, club-wielding police beat several HEP members of Parliament and arrested nearly thirty people.⁴³ Such clashes became commonplace, as did searches and detentions without trial.⁴⁴ The tone such exchanges could take is evident in one such

report concerning the HEP regional administrator Ahmet Karatekin, who told reporters from a pro-Kurdish newspaper that police came to search his house on 15 June 1991, but, finding nothing, took him to jail regardless.

The police said they would do a search of my house. When I asked why they were searching, they said I had been sheltering a man in my house, that people they were looking for had been here. . . . Of course they didn't find anyone or anything in my house, and not finding anything, they arrested me. In jail . . . the questions that they asked were "why are you in HEP. . . . The PKK is directing HEP."⁴⁵

Official efforts to curb the HEP's activities were mirrored in the activities of the so-called Turkish deep state, which was widely suspected of targeting pro-Kurdish activists for assassination.⁴⁶ One of the most prominent of such attacks was on the HEP's Diyarbakir regional chairman, Vedat Aydın, who was found dead on a highway near Diyarbakir on 8 July 1991. His family reported that he had been taken from his home three days earlier by four men who identified themselves as police officials. Such events fueled public hostility and led to direct confrontations between pro-Kurdish crowds and state officials. Four days after Aydın's body was found, six people were killed and more than 150 people were injured after fighting broke out between police and a crowd of an estimated 25,000 people who attended his funeral. The government spokeswoman İmren Aykut blamed unspecified "provocateurs" for the problems between police and demonstrators, and the ANAP's deputy chairman Sabri Keskin openly accused the HEP deputies of instigating the violence by "firing bullets at the police station." Witnesses said the fighting began after several people threw stones at the police station and security forces intervened with armored cars.⁴⁷

Police and "unknown" resistance to pro-Kurdish politics was reinforced by a series of legal and parliamentary actions against them. The public prosecutor's office opened an investigation against the HEP in the summer of 1991; the Constitutional Court finally closed the party on 14 July 1993. The indictment accused the HEP of "becoming a focus of illegal political activities and engaging in activities against the indivisible unity of the state with its country and people."⁴⁸ The HEP's deputies managed to keep their parliamentary seats by forming the DEP prior to the HEP's closure but were finally unseated in March 1994. That month, seven pro-Kurdish deputies were arrested, and court proceedings begun against them after Parliament voted overwhelmingly to strip six DEP deputies, one independent Kurdish deputy, and another independent Islamist deputy⁴⁹ of their parliamentary "immunity from prosecution" guaranteed under Turkish law. The prosecutor's petition to the Parliament accused one deputy, Orhan Doğan, of sheltering PKK militants; charges against the other pro-Kurdish MPs revolved around their speeches and written statements.⁵⁰ The DEP was closed on 16 June 1994; seven of its deputies and one independent pro-Kurdish deputy (Mahmut Alınak) received jail terms of three to fifteen years in December 1994.

Parliamentary debates prior to the vote on lifting the deputies' immunity offer a vivid example of the way some members of Parliament framed their arguments against pro-Kurdish politics. In a long parliamentary speech that was frequently interrupted by applause and cheers from the right-wing party benches, the True Path Party deputy Coşkun Kırca, a member of the Parliament's constitutional committee, argued it was "in the public good" to remove the deputies' immunity.⁵¹ The pro-Kurdish

deputies' proposals to lift emergency law in the southeast and to establish regional parliaments had revealed their true colors, he argued: "The intention is to destroy the unity of the country, people and state in Turkey." Leaving the deputies "inside the democratic process" so that their ideology might be "softened," he said, was not worth the potential risk to the security of the nation. Deputies like himself felt such "sensitivity" on the topic, he continued:

[b]ecause the Constitution established this state as an indivisible whole with its country (*ülke*) and nation (*millet*). [Turkey] cannot be turned into a federation or an autonomy. . . . Why a singular state? Because in this country there is only one nation. Ever since setting foot on this blessed soil in 1071 the Turkish Nation put the stamp of the Turk on this homeland and no one will ever be able to change this. . . .

Today in Turkey there is no national minority. There are Turks, there is the Turkish People; there is the Turkish Nation. . . . Now, there is not a country that can tolerate the destruction of the basic foundations of that country, the division of its state and its country, [or] its nation being torn to pieces among minorities and peoples. There cannot be such a thing. This right is not a democratic right; this right does not arise from human rights; this right was clearly rejected by the European Convention on Human Rights and all of the democratic practices of the civilized countries.⁵²

For these members of the state, there could be no such thing as a "Kurdish movement" within a democratic republic. Police, prosecutors, and a majority of Parliament acted under a paradigm that equated pro-Kurdish leaflets with Kurdish separatist propaganda; portrayed pro-Kurdish party membership as synonymous with PKK membership; and treated demonstrations in support of pro-Kurdish politicians as rebellion against state authority. They were able to phrase their criticism of the pro-Kurdish parliamentarians as defenses of Turkish territory, character, and democracy. To them, attacks on Kurdish politicians posed less of a threat to public safety than the activities of the politicians themselves. These state actors did not ignore democracy as ideology; according to them, they were protecting democracy by suppressing separatist pro-Kurdish politics.

The varied efforts made by so many representatives of the state to prevent the parties from functioning indicate that the challenge the HEP mounted was broadly perceived as a significant threat to Turkish political and territorial cohesion. This antagonistic and sometimes violent relationship between the HEP and the state supports a very bleak picture of the status of pro-Kurdish rights in Turkey. An "official state policy of repression toward minorities," one analyst concluded gloomily, "has led to the virtual elimination of Kurdish representation within the press, Parliament, and the courts throughout the 1990s."⁵³ Under the official Turkish paradigm, parties such as the HEP, the DEP, and HADEP had little right to exist, let alone operate in the Parliament.

Nevertheless, while pro-Kurdish politicians were targets, they were not passive victims.⁵⁴ Pro-Kurdish activists did not give up easily, despite the serious personal and professional risks. As one layer of pro-Kurdish leadership was removed from active political participation, others rose to take its place. When the Constitutional Court closed one pro-Kurdish party, pro-Kurdish activists opened another. The HEP and the DEP deputies fought back against their critics with public statements and

with proposals and speeches in Parliament, and by galvanizing support among their constituents. They challenged the state's claim to know what kind of democracy was best for Turkey, accusing the "September 12 military regime" of "preventing Turkey from embracing democracy,"⁵⁵ as well as undermining the state's authority to define the identity of its citizenry. Further, theirs was not a struggle waged in political isolation. Instead, they used Turkey's party system to political advantage, winning support for the HEP from members of the Turkish parliamentary establishment, who in turn promoted the idea that even "distasteful" pro-Kurdish politics deserved a place in a democratic country. This mainstream political assistance proved crucial in helping pro-Kurdish politicians continue to participate in the political system between 1991 and 1994.

First Struggle: SHP, the Paris Conference, and the Yeni Oluşum

The HEP was institutionally born of an internal struggle within the Sosyal Demokrat Halkçı Parti (SHP) over whether it was in the SHP's interests to tolerate or suppress pro-Kurdish politics. Since it was founded in 1985, the party had housed an unhappy marriage of center-left Turkish intellectuals and workers on the one hand, and rather less mainstream Marxists and Kurds on the other. Although conservative factions within the party had periodically attempted to "cleanse" it of its more radical elements, it remained the party of choice for most Kurdish activists.⁵⁶ By the end of the decade, the party's ideological fissures had become increasingly difficult to paper over with party discipline. An "off the agenda" speech in Parliament concerning the status of Turkey's Kurds made by Istanbul deputy Mehmet Ali Eren brought the SHP criticism and contributed to the decision by the party's leader Erdal İnönü to resign in early 1988 (although he soon returned to lead the party). Eren argued that Turkish law was applied differently in the west and east of the country and that the existence of Turks of Kurdish origin in Turkey had been rejected.⁵⁷ International institutions also gave pro-Kurdish deputies other opportunities to express themselves in terms that ran counter to official and party lines. In February 1989, Malatya deputy İbrahim Aksoy was expelled from the SHP after he told the Turkey-European Joint Parliamentary Commission that a Kurdish problem existed in Turkey that might be solved through autonomy.⁵⁸ For the SHP, the most serious crisis was to come later that year, when seven Kurdish deputies from the SHP flew to Paris for the "first international conference ever devoted to focusing attention on the plight of the Kurds."⁵⁹ The conference, held on 14–15 October 1989 and jointly organized by the Paris-based Freedom Foundation and the Kurdish Institute,⁶⁰ was attended by about 300 people, including Jalal Talabani of the Patriotic Union of Kurdistan, and received extensive press coverage from papers such as the *Washington Post* and the *Independent* of London.

The SHP was deeply divided over how to respond to the deputies' widely publicized attendance. İnönü, himself invited to the conference, had considered permitting the deputies to attend before being convinced of the political risks involved in allowing representatives of the Turkish Parliament to attend an event that not only acknowledged but specifically promoted Kurdish rights and identity.⁶¹ The critical

press coverage of the seven deputies' trip to Paris (complete with front-page photos of them arriving at the airport back in Turkey) confirmed SHP administration fears and the perceived need for action against them. Although the deputies had not made any speeches at the conference, the event itself and the "provocative words of others," as İnönü put it,⁶² received prominent play in the Turkish media. Nearly a third of the SHP's deputies came to the deputies' defense and tried to persuade İnönü simply to give the deputies a warning rather than a permanent expulsion. But other SHP members advocated expelling the deputies from the party, and on 17 October the SHP Central Committee decided to send the seven to a disciplinary board so it could do just that.⁶³ On 17 November, the disciplinary committee voted to expel the seven for behaving "contrary to the decision of the general assembly, committee and other organs, and to the decrees of the program and by-laws."⁶⁴ The decision, reached after five hours of debate and a narrow 5–4 vote,⁶⁵ further exacerbated tensions within the party. Furious at İnönü and the SHP administration, dozens of regional SHP administrators and about 3,000 rank-and-file party members⁶⁶ quit the party. So did twelve SHP members of Parliament, including Aydın Güven Gürkan, founder of the SHP.

Although the deputies were technically expelled for disobeying party orders, it was broadly understood that they had transgressed the often-unspoken limits of free political expression. Debate focused not on Kurdish rights per se, but on the underlying implications of attendance at a conference that discussed them. Accused of separatism, of consorting with the PKK, and of seeking a "nation based on race," the seven responded by arguing that such allegations were unfounded and that making them would "damage our party, the social-democratic movement," and "the integrity of our country."⁶⁷ Defenders of the deputies accused the SHP's administration of treating the expelled seven "with the attitude of a military prosecutor" and of failing to abide by "the rules of law and democracy."⁶⁸ Even SHP Chairman Erdal İnönü, when asked why the twelve deputies had quit the party after the expulsions, told the newspaper *Cumhuriyet*: "No deputy ever came to me and said, 'We don't want a unitary state.' The resignations had their source in criticism of the administration."⁶⁹

Underlying such intra-party arguments lay the crux of an argument that would eventually seep beyond the confines of the SHP: did the seven deputies' attendance at the conference represent treachery, or did it represent freedom of expression? Did the SHP expulsions constitute defense of party authority and, more, the integrity of the nation; or, conversely, were they indicative of an autocratic party system that threatened to alienate large sections of the populace through oppressive, anti-democratic behavior? Criticism of pro-Kurdish sentiments was usual. But portrayal of Kurdish rights as a specific and necessary corollary to broader democratic rights was not. The SHP debates thus introduced Kurdish rights to political expression—since the 1980 coup equated largely with treason—as a legitimate political demand.

This demand was incorporated into the platform of a loosely knit political group called the *Yeni Demokratik Oluşum* (New Democratic Formation), the product of early discussions among the expelled deputies and those who had resigned in support of them.⁷⁰ Led by Gürkan and such well-known leftists as Murat Belge, the New Democratic Formation's origins from within the SHP and the prominent socialist credentials of its leaders gave the early movement a broad-based, leftist image in the

media,⁷¹ particularly in the secular-leftist *Cumhuriyet*, which followed the progress of the new movement carefully. In an early echo of Cem Boyner's Yeni Demokrasi Hareketi (New Democracy Movement), the group presented itself as a grass-roots movement that would unite Turkey's left under a banner of environmental, social, and democratic reforms, including public expressions of Kurdish identity. However, it was not until 3 March 1990, when the group held a public assembly in Ankara, that the power of the movement's pro-Kurdish element became apparent to the public and to many of the New Democratic Formation's leaders. About 2,500 people, including a number of Turkish legal and trade-union leaders as well as former and current SHP deputies, attended the meeting, at which Gürkan outlined twenty-three different projects the movement planned to pursue. But it was his brief statement that the Kurdish problem must be recognized as such and "solved through democratic means"⁷² that reportedly elicited the most enthusiastic response from the audience. "Every mention of the Kurdish issue drew applause," commented Hasan Yalçın in the leftist weekly *İkibin'e Doğru*, asserting that at least 80 percent of those at the meeting were Kurdish.⁷³ The implications of the meeting, Yalçın wrote thoughtfully, were apparent:

Kurds today are, together with the working class, one of the two most dynamic elements in our society. They support every initiative that promises equality, freedom, and democracy. No one can make a progressive democratic or revolutionary policy without embracing this force. Yet one can't even mention this. Therefore, the New Formation's problem is not whether it should be a "Kurdish party" as it is being characterized, [but] will the movement be revolutionary enough to satisfy Kurds?⁷⁴

True to Yalçın's words, the degree to which the New Democratic Formation could satisfy more revolutionary Kurdish political aims indeed proved a problem for the movement. Discomfort over the increasingly Kurdish ethnic character of the fledgling party, and leadership quarrels between Gürkan and a leader of the pro-Kurdish faction, Fehmi Işıklar (himself not Kurdish), led to the demise of the party in March 1990.⁷⁵ As Gürkan, Belge, and a number of older, left-wing deputies left, a younger generation of politicians was able to reconfigure the group as something quite new. Unlike Gürkan and Belge, their political priority was not leftism but fundamental reform of official versions of national identity. On 7 June 1990, a group of eleven deputies submitted a petition to the Interior Ministry to found a party, the HEP, that would attempt to carry out this mission.

The formation of the HEP led by Fehmi Işıklar signaled the SHP's failure to find a point of compromise. Instead of resolving their differences or putting them aside, core members of the SHP and those who founded the HEP chose (at least for the time being) to go separate ways. The schism constituted a turning point for pro-Kurdish politics in Turkey, after which pro-Kurdish politics would become a single-issue platform for a succession of parties. Nevertheless, the HEP's origins in the SHP and its members' relationships with powerful deputies such as Aydın Güven Gürkan gave it a number of key allies within Parliament; it also meant that the HEP was born with a significant measure of political legitimacy, thus giving it some time to establish itself.

Second Struggle: The 1991 Election Alliance as a Bridge Back to Parliament

Demands among some Turkish and Kurdish deputies for expanded freedom of expression had helped create a schism within the SHP in early 1990. A second public schism within the Turkish political body concerning pro-Kurdish politics emerged in the fall of 1991, when the ruling Motherland Party called early elections. This time, the quarrel manifested itself publicly between the two major parties of the center-left: the SHP and the Demokratik Sol Parti (DSP, or Democratic Party of the Left) led by Bülent Ecevit. Turkey's Supreme Electoral Board had refused to allow the HEP to compete in the elections, arguing that the party had not fulfilled election laws mandating that political parties establish offices in at least half of the country's seventy-four provinces and hold a nationwide congress a minimum of six months prior to elections. The HEP's deputies discussed running as independent candidates, but they would have faced formidable competition from the better-funded party-sponsored candidates.⁷⁶ The SHP, which had lost substantial support in the southeast after ousting the seven deputies in 1989,⁷⁷ was among several parties that began courting the group in an effort to coax it into an election alliance, and in the first week of September 1991, SHP Chairman Erdal İnönü and HEP Chairman Fehmi Işıklar announced that the HEP would run on the SHP ticket. İnönü heralded the agreement as "not merely an election alliance" but a step toward party integration, adding that the "artificial differences" between various political groups were now being removed. Catering to the HEP's Kurdish constituents, he added that all citizens of Turkey ought to possess equal rights "irrespective of special characteristics and their historical, cultural and religious-ethnic origins."⁷⁸ Implicit in such proclamations was the idea that the SHP's politics should be broad enough to encompass even pro-Kurdish politicians and, conversely, that pro-Kurdish politics no longer constituted sufficient reason for political division.

The SHP, soon forced to defend the alliance, did so by building on the HEP's long-time stance that supporting HEP candidates would strengthen Turkish democracy, not weaken it. İnönü writes in his autobiography that party leaders saw the alliance with the HEP as a positive development not only because it might save the party from the accusation that Turkey's Kurdish-origin citizens were "being excluded from SHP," but, just as important:

We would have been promoting the possibility that people who had begun to be seen as representatives of our Kurdish-origin citizens could be elected to a large party open to all ethnic groups, rather than [to] a separate party. In my opinion this was one way, within democracy, of preventing cleavages that could threaten the unity of the country.⁷⁹

Mainstream politicians such as İnönü struggled between what appears to be a genuine desire to see a democratic outlet for the expression of Kurdish identity (along with a practical desire to garner Kurdish votes), and between party and public pressure to toe the traditional state line. Lacking a broader popular or party mandate for real change, they rarely addressed the HEP's specific demands (for the lifting of emergency rule, extension of Kurdish cultural rights in schools and in public, and

elimination of the village guard system, for instance) during debates about the party, and instead focused on its right to express such demands in a democratic system.⁸⁰

The clash between this stance and that of the Turkish nationalists was illustrated in a series of election-time exchanges between İnönü and Bülent Ecevit, chairman of the Democratic Left Party. For Ecevit, ethnic politics at odds with Turkish nationalism clearly constituted a bigger threat to Turkey than the suppression of a Kurdish political voice. The former prime minister blasted the SHP for its alliance with the HEP, arguing that the social democrats were “harboring separatists.” Furthermore, he argued, by supporting “Kurdish nationalism,” the SHP was deserting Turkey’s majority populace.

My nationalism is a nationalism that regards equally those who come from different origins but become one (*Türkiye’de bütünleşenleri*) in Turkey. That is, it is Atatürk’s understanding of nationalism. But there are some in Turkey who think of themselves as “leftists” who consider nationalism incompatible with leftism. . . . Actually, according to this way of thinking by the “leftist intellectuals,” Turks are the only people [in Turkey] who don’t have the right to be nationalists.⁸¹

İnönü, however, turned Ecevit’s argument on its head, claiming instead that the HEP–SHP alliance supported the integrity of the country. Involving voters and politicians of the southeast in political life was “not separatism,” İnönü insisted. “Quite the contrary, it is a unifying behavior. Real separatism is to incite behavior that excludes the people of that region from political life and is to make [these kinds of] accusations.”⁸²

Twenty-two of the twenty-seven HEP–SHP candidates were elected to Parliament on the SHP ticket, making up a quarter of the SHP’s total parliamentary representation. Fifteen of the twenty-two deputies elected had no prior experience in national politics; all were born in the southeast; and many had extensive ties to local Kurdish politics.⁸³ By taking in deputies it had once repudiated for what was reported as near-traitorous behavior, the SHP had helped validate the HEP’s pro-Kurdish political platform and incorporate it into the mainstream political arena—something Ecevit recognized. He told *Cumhuriyet*: “If the HEP had been able to enter the election on its own, I wouldn’t have seen this as any cause for concern. [But] in a situation in which a party encouraging separatist trends is united with the main opposition party, it is inevitable that it will influence the policy of the main opposition party.”⁸⁴ With the aid of the SHP, a politicized version of Kurdish ethnic identity thus made its way into the Turkish Parliament with former members of the SHP who, far from chastened, returned from SHP exile with a renewed pro-Kurdish mission.

The Third Struggle: Parliamentary Immunity, Prosecutors, and Parliament

Mainstream Turkish politicians had played a key role in bringing pro-Kurdish politicians back to Parliament. They also played an important part in keeping them there over the objections of other officials, who soon began to refer to the pro-Kurdish deputies as “the PKK come down from the mountains.”⁸⁵ The HEP’s first generation

of leaders (men such as Fehmi Işıklar and Mahmut Alınak) had pursued the party's goals by trying to balance the concerns of their constituents and the legal requirements of politics. The new generation of HEP deputies sent to Parliament with the SHP in the October 1991 election was less experienced in the arena of national politics, more grounded in local sentiments of resistance and resentment, and simply less cautious.⁸⁶ This new pro-Kurdish representation following the election both divided members of Parliament and fueled an extended struggle for political dominance between the Parliament and the Public Prosecutor's Office, which wanted Parliament to lift the deputies' parliamentary immunity from prosecution.

Parliament, however, was in no hurry to cooperate. First, a *fezleke* (summary of an investigation) sent by the Public Prosecutor's Office to Parliament on 26 December 1991 asking Parliament to lift twenty-two pro-Kurdish deputies' immunity so they might be charged with treason⁸⁷ was returned without consideration to the Public Prosecutor's Office several weeks later by Speaker of Parliament Husamettin Cindoruk, a veteran politician and then a member of Tansu Çiller's True Path Party. Press reports stated that Cindoruk had taken umbrage at the wording of the petition, which reportedly asserted that "PKK members had taken shelter in Parliament," and had sent it back claiming that its language "insulted the Parliament and was contrary to the principles of parliamentary immunity, the (parliamentary) podium, and jurisprudence."⁸⁸

On 2 April 1992, the president's office sent the petition unchanged back to Parliament on behalf of the prosecutor, this time with an additional eighteen-page note from the public prosecutor, arguing, according to *Cumhuriyet*, that Cindoruk was preventing the prosecution from doing its duty. This created a small stir in the press, with *Cumhuriyet* predicting a *fezleke* crisis that would pit Cindoruk against Chief Public Prosecutor Nusret Demiral. Cindoruk was quoted asserting that he "was not afraid" of any prosecutor and that he expected the prosecution to grant Parliament the respect it was accorded in the constitution.⁸⁹ He also argued that members of Parliament "had freedom of the rostrum" and should be free to speak their minds.⁹⁰ However, despite press rumors that Cindoruk would return the petition a second time, the speaker announced that he would take up the matter after he had served his term as acting president, a position he took up on 21 April when President Süleyman Demirel left the country. What Cindoruk might or might not have done with the petition became moot when Yılmaz Hocaoglu, serving as acting Speaker of Parliament, decided on 21 May 1992, the last day of his tenure, to forward the petition to Parliament's joint Justice and Constitutional Commission for consideration.⁹¹

The English-language weekly *Briefing* warned darkly that the temporary speaker had aided both Turkish nationalists and the PKK through his decision to process the petition, going on to argue that the prospect of Parliament "discussing the issue of whether to allow a score of its members to be tried in a 'civilian martial law court' by a notorious prosecutor for the crime of expressing their opinions" was "casting a long shadow over the government's moves towards liberalising the regime and encouraging political participation."⁹² Nevertheless, even now Parliament was in no hurry to rescind the deputies' immunity. Despite reports that the petition would be taken up by its committee in October 1992, the joint commission at that time merely forwarded it to a subcommittee.⁹³ Another year passed before the subcommittee

finally resuscitated the issue of the twenty-two deputies' immunity and brought it to the agenda. Although such delays in action may be normal in most parliamentary systems (including Turkey's), Parliament's lack of interest in aiding the prosecutor's investigation into behavior allegedly so serious it might be punishable by death suggests that despite their own criticism of pro-Kurdish politicians, few in Parliament wanted to see elected deputies' power to speak freely curtailed by an agency other than themselves.⁹⁴

Even when the matter of parliamentary immunity was finally discussed and voted on by the joint parliamentary Justice and Constitutional Commission and then brought to the full parliamentary assembly in March 1994, Parliament did not accede to all of the prosecutor's demands. Of the twenty-two deputies the prosecutor's office sought to prosecute, Parliament voted to lift the immunity of only seven. The other cases were either dismissed by the commission as unnecessary or postponed until the deputies involved had finished their tenure in Parliament—a move that effectively stymied the prosecution.⁹⁵

Cindoruk personally complicated legal proceedings against the pro-Kurdish deputies in other ways. After the closure of the HEP by the Constitutional Court in July 1993, former HEP Chairman Fehmi Işıklar (one of the few HEP members who remained in the SHP after the elections of 1991, and by then serving as Deputy Speaker of Parliament) was threatened with the loss of his parliamentary seat. Cindoruk insisted that Işıklar keep his seat, despite pressure from the court, until its decision had been published in the *Official Gazette* and was legally binding; in the meantime, he began working with members of the SHP and other left-wing parties to try and overturn the court's decision concerning Işıklar.⁹⁶ In July 1994, he gave the DEP deputies Sedat Yurtdaş and Selim Sadak asylum in Parliament after a warrant for their arrest was issued by prosecutor Nusret Demiral. Turkish television viewers saw their elected representatives fleeing quite literally from the hands of one branch of the state to those of another, as Yurtdaş and Sadak, driven in a limousine, wound through Ankara streets to the Parliament building pursued by police cars and TV cameras.⁹⁷ Again, despite the fact that Demiral had ordered Ankara police to arrest the deputies, Cindoruk said the deputies could not be arrested until the Constitutional Court's decision to ban the DEP and arrest thirteen of its seventeen deputies had been published in the *Gazette*. Cindoruk's stance was backed by President Süleyman Demirel, who met with Yurtdaş and Sadak after the court's decision and told the deputies that "the door to the presidential palace" was always open to them.⁹⁸

Certainly neither Demirel nor Cindoruk was motivated by innate support for the pro-Kurdish deputies' political views. Cindoruk, something of a maverick but no radical, repeatedly defended the state's right to fight the PKK—for instance, telling pro-Kurdish politicians in 1993 that while "there is no issue we cannot discuss if we all believe in the undivided unity of the country" and "if we are against violence," the state "is against everybody who perpetrates violence and it has a right to use violence against those perpetrators."⁹⁹ Rather, he and others who defended pro-Kurdish participation in Turkish politics insisted on the precedence of democratic procedure above other concerns *as long as* deputies worked within the legal political system. Cindoruk outlined the rules of the game to pro-Kurdish deputies:

"We can discuss everything if we believe in something and if we are against violence, which is impossible to defend. Anything can be discussed and argued in Turkey on the condition that the rights of the state are not trespassed upon."¹⁰⁰

But, critically, no mainstream consensus existed about exactly where the rights of the state ended and the rights of citizens to change that state began. As discussions and debates concerning the HEP, the DEP, and the pro-Kurdish deputies gradually made clear, state and elected officials could not agree on how to reconcile the demands of democracy with the nationalist imperative, or on how much leeway pro-Kurdish politics should have. As she called on her True Path Party to "act together against separatism" and vote against the DEP deputies (prior to an election and with some pressure from Turkish Chief of Staff General Doğan Güreş¹⁰¹), Prime Minister Tansu Çiller could argue that "if the indivisible unity of the state and nation are being maligned in the name of freedom . . . this cannot be called democracy."¹⁰² The SHP Deputy Ziya Halis, on the other hand, would argue not that separatism must be protected, but that freedom of speech must be: "If you want democracy, if you want a parliamentary regime to be truly and completely formed and functioning, then abandon this type of mentality and this type of approach," he beseeched Parliament.¹⁰³ On 3 March 1994, all MPs from the center-right parties voted in favor of stripping the deputies of their immunity; seventeen SHP deputies and a handful of deputies from the recently re-formed Republican People's Party voted against it. It was the first time a deputy's immunity from prosecution had been removed since 1968.¹⁰⁴

The statement of the DEP's leader, Hatip Dicle, in February 1994 that all Turks in uniform constituted a legitimate target for PKK bombs, on the heels of his assertion at the DEP convention that the PKK constituted a political, not a terrorist, organization, may have provided the immediate political impetus for Parliament finally to lift pro-Kurdish deputies' immunity. Upcoming elections and public grumbling by military and business leaders about pro-Kurdish representation in Parliament also prodded conservative deputies to do so. But even afterward, there were voices of regret that wondered aloud how democracy—even Turkish democracy—could function in such an environment. Erdal İnönü, who said he opposed the vote but was out of the country at the time, told *Milliyet*:

One of the basic characteristics of democracy is freedom of thought and ideas. That is, everyone, and especially deputies, should be able to say what they want. Should things that are wrong and against the country also be said? That is the meaning of freedom of ideas. By lifting immunity you are prohibiting the expression of ideas that are wrong. If you prohibit wrong ideas, how will you explain that right ideas are right?¹⁰⁵

CONCLUSION

The HEP's 1992 program stated that it was a party that would fight for "freedom for the Turkish and Kurdish people" who had "been living next to and with one another for centuries."¹⁰⁶ By the early 1990s, this was no longer the radical statement it might once have been; President Turgut Özal had broken years of state silence by

claiming he was part Kurdish,¹⁰⁷ and even more conservative center-right statesmen such as Süleyman Demirel had acknowledged a “Kurdish reality.”¹⁰⁸ The pro-Kurdish parties, however, visualized this concept of ethnic *kardeşlik* (brotherhood) as an ideal, rather than as a de facto reality, and made it a central tenet of their platforms. Kurds were no longer to be absorbed by the greater whole of Turkish nationalism; they were to live “side by side” in equality with their Turkish brothers and sisters in a pluralist, multi-ethnic society. This attempted shift from the metaphorical umbrella of Turkish nationalism to a union of equals challenged decades-old Turkish state ideology and was met with loud resistance from police, prosecutors, and members of Parliament. They argued that suppressing the parties was necessary for the protection of Turkish democracy and the Turkish nation-state. Yet the effectiveness of these state actors was compromised by key members of the Turkish Parliament, who aided the pro-Kurdish deputies at important moments. They argued that as long as pro-Kurdish politicians worked within the system and adhered to principles of non-violence, they deserved to participate in Turkish democracy. Further, they argued that the status of Turkish democracy would be threatened if the parties were prevented from operating.

The DEP’s closure and the prosecution of its deputies largely removed overtly pro-Kurdish politics from Parliament. But it did not exclude them from the Turkish political system. In the months preceding the scheduled by-elections of December 1994 (which were later canceled), Prime Minister Tansu Çiller suggested that the DEP deputies run for office from the prison cell. When national elections were held the following December, the HADEP (founded in July 1994 to replace the DEP) was invited to participate. It did so, even fielding candidates such as former DEP Deputy Sedat Yurtdaş, who had been released from jail only two months earlier. The HADEP took nearly 50 percent of the vote in parts of the southeast, although it did not meet the requisite 10 percent election threshold needed to place candidates in Parliament.¹⁰⁹ The fact that conservative members of the Turkish political establishment would invite back into the political arena Kurdish politicians they had recently helped convict reflects the hypocrisy of politics, yet it also suggests that certain state actors do not perceive a pro-Kurdish platform as an intrinsic threat to the system.

Certainly, the difficulties encountered by the HEP, the DEP, and the HADEP between 1990 and 1999 suggest little tolerance for anyone aspiring to “the equality of the Turkish and Kurdish peoples . . . within the framework of the legitimate principles of the law,” as the former HEP Chairman Feridun Yazar concluded.¹¹⁰ The HADEP, which conducted its work rather quietly until a disastrous party congress in 1996,¹¹¹ by 1999 had learned, like the HEP and DEP activists, how uneasy the position between Turkish and Kurdish nationalism could be. In the spring of 1999, the capture of the PKK leader Abdullah Öcalan, the arrest of thousands of pro-Kurdish activists, and a nationwide bombing campaign by militant Kurdish groups placed an additional strain on HADEP’s efforts to remain “moderate” and on the ability of Turkish liberals to maintain public support for Kurdish cultural and political rights. The triumph of Turkish nationalist parties in the 18 April 1999 national and local elections further signaled that such events had left little room for constructive negotiation.¹¹² Nevertheless, it remains far from clear how Turkish and Kurdish

politicians will navigate through a post-Öcalan world, and even in the midst of nationalist saber-rattling, there were still signs in early 1999 of some intra-state disagreement concerning pro-Kurdish political rights. Over the objections of the Public Prosecutor's Office (and defying not inconsiderable public opinion), the Constitutional Court on 14 April decided to reject an application from Chief Prosecutor Vural Savaş to suspend HADEP, thus granting the party the ability to participate in the 18 April elections, where it took a number of important local offices in the southeast.

From the HEP to HADEP, the history of pro-Kurdish politics in Turkey in the 1990s is one of the lopsided but tenacious struggle for a political and ideological transformation taking place across what Timothy Mitchell has called the "uncertain boundary" between state and society.¹¹³ The HEP's political evolution from within the Turkish party system, its alliance with SHP, and its stated commitment to non-violent methods of solving the Kurdish problem allowed it to cultivate resistance from within the political establishment and to highlight the contradiction between Turkish nationalism as traditionally implemented by the state and the state's espoused commitment to democratization. The party encouraged the development of a broad debate within politics and the press concerning the place of democracy and national identity in the ideology of the modern Turkish state. In addition, the HEP, the DEP, and HADEP took the political system seriously, working within it and participating in elections. No matter how much pro-Kurdish politicians complained, they believed enough in the potential flexibility of the Turkish system to attempt to work within it. By participating in the Turkish political system rather than attacking it from outside, the HEP and its successors encouraged right- and left-wing Turkish politicians to articulate and defend their representations of the character of their state and their vision of Turkish national identity.

Contrary to the usual indicators and reports that would suggest pro-Kurdish politicians have done little but lose in Turkey, the HEP and its successors created a quasi-tolerated if disliked space for themselves in mainstream Turkish political culture that could be a foundation upon which to affect the policies of the state that governs them. By saying this, I am not arguing that pro-Kurdish parties have "won" in any easily pinpointed way. Indeed, there is no question that pro-Kurdish parties have had to weather continuous attacks, often of the most literal kind (the crackdown on HADEP in the wake of Öcalan's arrest is only one recent case in point). What the HEP accomplished is less obvious, but significant. It helped change Turkish politics, not in a way that guarantees future success, but in a way that may offer avenues to be explored. This suggests that there may be more flexibility in the Turkish political system to change itself than is commonly granted to it. In addition, pro-Kurdish politicians and mainstream Turks have proved themselves capable of working together, when it suits their needs.

NOTES

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¹Recent accounts of official Turkish policies toward Kurds can be found in Kemal Kirişçi and Gareth M. Winrow, *The Kurdish Question and Turkey: An Example of a Trans-State Ethnic Conflict* (London: Frank Cass, 1997); Henri J. Barkey and Graham E. Fuller, *Turkey's Kurdish Question* (Lanham: Rowman & Littlefield, 1998); David McDowall, *A Modern History of the Kurds* (London: I. B. Tauris, 1996); and Nicole and Hugh Pope, *Turkey Unveiled: A History of Modern Turkey* (Woodstock: Overlook Press, 1998), chap. 15.

²European uncertainty over whether PKK Chairman Abdullah Öcalan should be treated as a leader of Kurds or a terrorist helped prevent Öcalan's extradition to Turkey in late 1998 after he fled from his base in Syria and flew to Italy. That he was not given permanent asylum in Italy or elsewhere in Europe constituted a severe blow to the PKK, especially when it helped lead to Öcalan's arrest by Turkish authorities, but the political discussions and Western media coverage concerning his flight and incarceration demonstrated the extent to which the notion of Kurdish ethnic rights, at the very least, has gained international legitimacy.

³For a list of the seventy-seven people who signed the founding petition, see *Cumhuriyet*, 8 June 1990.

⁴Because this paper is concerned with the evolution and activities of the HEP and DEP within the Turkish political system, it is beyond its scope to analyze the exact nature of relations between these parties and the PKK except as discussion about these relations pertained to the parties' ability to work with mainstream Turkish parties. While evidence suggests the PKK backed some members of the HEP and the DEP after 1991, the parties represented far more than a PKK front in membership, methods, discourse and effect.

⁵In the 1960s, the Türkiye İşçi Partisi (TİP, or Worker Party of Turkey) recognized the existence of Kurdish-speaking Turkish citizens, and at its party congress in October 1970 called for the recognition of a Kurdish people. While revolutionary for the time and in large part responsible for the party's closure in 1971, the party's focus was not on Kurdish identity. Also, leftist discussions concerning Kurds remained largely out of mainstream public discourse.

⁶I use the term "pro-Kurdish" because it connotes a political rather than strictly ethnic identity. Kurdish identity is not a clearly delineated term and encompasses several different linguistic and religious groups. To some Kurds it is not necessarily meaningful in the political realm. In addition, not every member of the pro-Kurdish parties was an ethnic Kurd.

⁷The observer is Heath Lowry, then the executive director of the Institute of Turkish Studies; the second statement is from Mary Sue Hafner, deputy staff director and general counsel of the Commission on Security and Cooperation in Europe after listening to testimony from, among others, the human-rights group Helsinki Watch: "Human Rights in Turkey: Briefing of the Commission on Security and Cooperation in Europe," Washington, D.C., 5 April 1993.

⁸McDowall, *Modern History of the Kurds*, 427.

⁹See, for example, Kendal (Nezan), "Kurdistan in Turkey" in *A People Without a Country: The Kurds and Kurdistan*, ed. Gerard Chaliand (New York: Olive Branch Press, 1993), 72–79.

¹⁰James Scott, *Seeing Like a State: How Certain Schemes to Improve the Human Condition Have Failed* (New Haven, Conn.: Yale University Press, 1998), 7.

¹¹Erik J. Zürcher, among others, has a good analysis of nationalism's importance to Turkey: see Zürcher, *Turkey: A Modern History* (London: I. B. Tauris, 1993), 189.

¹²Ernest Gellner, *Nations and Nationalism* (Ithaca, N.Y.: Cornell University Press, 1983); Partha Chatterjee, *The Nation and Its Fragments: Colonial and Postcolonial Histories* (Princeton, N.J.: Princeton University Press, 1993).

¹³For descriptions of these assemblies, see Frederick Frey, *The Turkish Political Elite* (Cambridge, Mass.: MIT Press, 1965), 306; also, Robert Olson, "Kurds and Turks: Two Documents Concerning Kurdish Autonomy in 1922 and 1923," *Journal of South Asian and Middle Eastern Studies* 2 (winter 1991).

¹⁴1924/28 Turkish Constitution, reprinted in Suna Kili, *Türk Anayasaları* (Ankara: Tekin Yayinevi, 1982), 62–63.

¹⁵Robert Olson, *The Emergence of Kurdish Nationalism 1880–1925* (Austin: University of Texas Press, 1989). Also see Zürcher, *Turkey: A Modern History*, 176–80.

¹⁶Between 1925 and 1950 the state's high levels of support among many groups in Turkish society allowed it to limit political participation and carry out a series of wide-ranging and often brutal measures aimed at "Turkifying" the country. Nevertheless, official and elite discourse itself was surprisingly flexible as compared with later decades: although some politicians argued that even to discuss the existence

of Kurds was to promulgate "foreign notions" designed to undermine Turkey, the existence of people called "Kurds" was tacitly and even explicitly acknowledged in newspapers and state documents such as censuses, which published the numbers of Kurdish speakers in the country.

¹⁷Quoted in Geoffrey Lewis, *Turkey*, 3rd ed. (New York: Praeger, 1965), 92.

¹⁸Ergün Özbudun, "The Nature of the Kemalist Political Regime," in *Atatürk: Founder of a Modern State*, ed. Ali Kazancıgil and Ergün Özbudun (London: C. Hurst, 1981), 91–92.

¹⁹Rona Aybay, "The International Human Rights Instruments and the Turkish Law," in *Turkish Yearbook of Human Rights*, ed. M. Turgay Ergün (Ankara: Institute of Public Administration for Turkey and the Middle East, 1979), 20–21.

²⁰State agencies also began monitoring themselves more carefully, eradicating mention of Kurds from the state's official discourse. For example, while censuses through 1965 published the number of Kurdish speakers in the country, this was no longer done after that.

²¹Mehmet Ali Birand, *12 Eylül Saat: 04:00* (Ankara?: Karacan Yayınları, 1984), 288.

²²Article 13, for instance, read: "fundamental rights and freedoms may be restricted by law, in conformity with the letter and spirit of the constitution, with the aim of safeguarding the indivisible integrity of the republic." For a full English-language text of the 1982 constitution, see Clement Dodd, *The Crisis of Turkish Democracy*, 2nd ed. (Huntingdon, Cambs: Eothen Press, 1990), 154–222.

²³These included a ban on "any language which is not the first language of a country that recognizes Turkey" from use in public: *MGK Tutanak Dergisi*, vol. 11, B: 176, 19.10. 1983, O: 2, p. 76–81. McDowall also provides a brief summary in English of these laws: McDowall, *Modern History of the Kurds*, 443.

²⁴Hamit Bozarslan, "Political Aspects of the Kurdish Problem in Contemporary Turkey," in *The Kurds: A Contemporary Overview*, ed. Philip G. Kreyenbroek and Stefan Sperl (London: Routledge, 1992), 105–9.

²⁵For example, Ahmet Türk, one of the HEP's founding deputies, had served several terms in Parliament prior to joining the HEP: see *TBMM Albumu*, 19. Dönem (Ankara: n.p., March 1992), 117.

²⁶They joined the Harb-İş union and visited shared Turkish and American defense installations in support of a strike taking place over contract talks, and supported thousands of striking miners from the industrial town of Zonguldak, for instance. See *Turkish Daily News*, 9 August 1990; see also A. Ahmet Ölmez, *Türkiye Siyasetinde DEP Depremi* (Ankara: Doruk Yayınları, 1995), 112–21.

²⁷*Turkish Daily News*, 14 November 1990.

²⁸*Halkın Emek Partisi Program 1990*, 18–19.

²⁹*Ibid.*

³⁰*Ibid.*, 9–10, 16.

³¹*Cumhuriyet*, 26 July 1990, 10.

³²*Halkın Emek Partisi Program 1992*, 17–18.

³³*Yeni Ülke*, 19–25 May 1991.

³⁴*The Anatolian* (a special edition of the *Turkish Daily News*), 9–15 June 1991. For reports and opinion on the congress, see also *Yeni Ülke*, 16–22 June 1991, and Alınak, *Parlamentodan*, 121–27.

³⁵*Turkish Daily News*, 11 June 1991.

³⁶At a HEP congress held in December 1991, hundreds of delegates were reported to have chanted pro-PKK slogans, and PKK leader Abdullah Öcalan's mother was received as an honored guest. The event did substantial damage to the HEP's public image and triggered a state security court investigation into its alleged links with the PKK. See *Milliyet*, 16–17 December 1991; *Turkish Daily News*, 16–20 December 1991.

³⁷See the statement by Ahmet Türk in *Cumhuriyet*, 17 November 1992, 5; also *Turkish Daily News*, 1 February 1992.

³⁸The 1994 formation of HADEP (again prompted by the DEP's imminent closure), led by Murat Bozlak, shifted the pro-Kurdish leadership back to a more publicly moderate stance. For more on this, see Ölmez, *DEP Depremi*, 325–48, and *Turkish Daily News*, 1 May 1992.

³⁹See, for instance, Tansu Çiller, "TBMM DYP Grup Konuşması (22 Şubat 1994)" in *Başbakan Tansu Çiller'in TBMM DYP Grup Konuşmaları (5 Ocak–23 Haziran 1994)* (Ankara: Başbakanlık Basın Merkezi, 1994), 48–49.

⁴⁰On state involvement in the "unknown assailant" murders, see Kirişçi and Winrow, *The Kurdish Question and Turkey*, 129; also "Top Fugitive's Arrest Reviving Turkish Corruption Inquiry," *New York Times*, 15 October 1998.

⁴¹A U.S. State Department report on human rights in Turkey in 1993 noted: "Turkish citizens have the right and ability to change their government peacefully. There are no restrictions in law or practice against women or minorities voting or participating in politics, with the notable exception of the harassment of Kurdish HEP and its successor, the DEP (emphasis added): *Turkey Human Rights Practices 1993* (Washington, D.C.: U.S. Department of State, 1994).

⁴²*Cumhuriyet*, 20 July 1990.

⁴³*Ibid.*, 11, 18, 20–23, 26 July 1990.

⁴⁴Following the HEP's first national assembly on 8–9 June 1991, nine administrators and seventy-six other party members were jailed (*Yeni Ülke*, 28–29 June 1991). For details of one case involving the arrest of HEP members, see *Cumhuriyet*, 31 July 1992, 4.

⁴⁵*Yeni Ülke*, 28–29 June 1991.

⁴⁶In Batman on 4 September 1993, "unknown assailants" fatally shot Mehmet Sincar, a DEP (formerly HEP) member of Parliament from Mardin, and Metin Özdemir, the local DEP chairman. They also wounded four others, including DEP member of Parliament Nizamettin Toğuç, and escaped. For information on the shootings, see *Turkey Human Rights Practices 1993* and "Turkish Government Intensifies Attack on Freedom of Expression," Amnesty International, 22 June 1994, Index: EUR 44/WU 13/94. By October 1995, at least 104 officials from the HEP, DEP, and HADEP had been murdered in a string of attacks known in Turkey as *faili meçhul cinayetler* (unknown assailant murders): see Aliza Marcus, "Turkey's Leading pro-Kurd Party to Contest Polls," Reuters, 31 October 1995. The consistent targeting of Kurdish activists, along with mounting testimony of police involvement (and the fact that few if any perpetrators were ever arrested), led to widespread conclusions by many Turks and Kurds that some arm of the state was involved in a shadowy "counter-guerrilla" execution plan designed to stifle expressions of Kurdish nationalism. This is detailed by, among others, Hugh Pope in *Middle East International* (11 September 1992): 14, and by *Turkey Human Rights Report 1994* (Ankara: HRFT Foundations, 1995), 130. These suspicions were largely confirmed by parliamentary and government investigations into the so-called Susurluk scandal of 1996, which revealed ties between security forces and ultranationalist members of "illegal gangs."

⁴⁷See *Cumhuriyet*, 9–10 July 1991; *Turkish Daily News*, 9, 12, 13–14 July 1991.

⁴⁸*Cumhuriyet*, 15 July 1993. For the full text of the case against the HEP, see *T. C. Resmi Gazete*, 18 August 1993, 11–234.

⁴⁹The six DEP deputies were Hatip Dicle, Orhan Doğan, Leyla Zana, Ahmet Türk, Selim Sadak, and Sırrı Sakık. Former HEP–DEP deputy Mahmut Alınak, then independent, and Refah Party's Hasan Mezarıcı also had their immunity lifted.

⁵⁰*Turkish Daily News*, 28 April 1994.

⁵¹*TBMM Tutanak Dergisi*, Dönem 19, Cilt 54, 2 March 1994, B: 78, O: 1, 273.

⁵²*Ibid.*, O: 1, 274–76. I have quoted excerpts here from a long speech interrupted at various times by applause and objections.

⁵³Mark Muller, "Nationalism and the Rule of Law in Turkey: The Elimination of Kurdish Representation in the 1990s," in *The Kurdish Nationalist Movement in the 1990s*, ed. Robert Olson (Lexington: University Press of Kentucky), 173. (Muller here does not differentiate between ethnic and political Kurdish representation in these institutions.) For more along these lines, see *Observer* (London) 21 May 1995; *Financial Times* (London), 11 July 1995; *New York Times*, 25 September 1996.

⁵⁴This is a point made forcefully by Hamit Bozarslan in his article "Political Crisis and the Kurdish Issue in Turkey" in *Kurdish Nationalist Movement*, 135–53. The article offers a sophisticated overview of the relationships between Kurdish politics and political crisis in Turkey.

⁵⁵See *Briefing* (6 April 1992): 6.

⁵⁶Personal conversation with Aydın Güven Gürkan, Ankara, 1994. Also see *Turkey Almanac, 1991–1992* (Ankara: Turkish Daily News, 1993), 195–98; and Andrew Mango, "The Social Democratic Populist Party, 1983–1989," in *Political Parties and Democracy in Turkey*, ed. Metin Heper and Jacob M. Landau (London: I. B. Tauris, 1991), 180.

⁵⁷*Turkey Almanac, 1991–1992*, 196.

⁵⁸*Turkish Daily News*, 26 and 31 January 1989. See also *İkibin'e Doğru*, 19 February 1989, 19, for an analysis of Aksoy's expulsion.

⁵⁹Jonathan Randal, "Soviet Kurds 'Rediscovered' by Kremlin," *Washington Post*, 19 October 1989. Some Turkish analysts ascribe the formation of the pro-Kurdish political parties directly to the conference: see İsmet Solak, *Hürriyet*, 15 July 1994, 12, for an example.

⁶⁰For more on the Paris conference, see Mahmut Alınak, *Parlamentodan 9. Koğuşa* (Ankara: Tila Yayınevi, 1994), 1:91–101; Paris Kurdish Institute, *Uluslararası Paris Kürt Konferansı, 14–15 Ekim 1989: Kürtler, İnsan Hakları ve Kültürel Kimlik* (Istanbul: Doz Yayınları, 1992); Jonathan Randal, Conference Highlights Plight of Kurds,” *Washington Post*, 16 October 1989; and Seven Greenhouse, “Paris Talks Seek Attention for Plight of Kurds,” *New York Times*, 15 October 1989.

⁶¹Erdal İnönü, *Anılar ve Düşünceler* (Istanbul: İdea İletişim Hizmetleri, 1996), 1:271–74; *Cumhuriyet*, 7 and 14 October 1989; and *Nokta*, 29 October 1989, 31. See also Alınak, *Parlamentodan*, 92. İnönü later told *Milliyet* (19 October 1989) that he had written a personal letter to Danielle Mitterrand, who helped organize the conference, explaining why he would not be attending. He reportedly told her that the SHP “will not attend meetings that give strength to separatist movements.”

⁶²İnönü, *Anılar ve Düşünceler*, 273.

⁶³*Turkish Daily News*, 18–19 October 1989.

⁶⁴*Cumhuriyet*, 18 November 1989.

⁶⁵For details of the expulsion, see *Cumhuriyet*, 11, 15, 18, and 26 November 1989; *Turkish Daily News*, 9 and 15 November 1989.

⁶⁶*Cumhuriyet*, 11, 15, 18, and 26 November 1989; *Turkish Daily News*, 9 and 15 November 1989.

⁶⁷*Turkish Daily News*, 6 November 1989.

⁶⁸*Cumhuriyet*, 24 November 1989. One statement to the press signed by Aydın Güven Gürkan and fifteen other deputies emphasized the need for a “democratic structure” representing all ethnic groups and cultures. In response to a reporter’s question, Gürkan said: “The official-language status of the Turkish language and the unitary nature of the state should not obstruct a democratic solution to the Kurdish problem. Our friends believe that to defend the idea of a federal state must not be regarded as separatism” (*Turkish Daily News*, 13–14 January 1990).

⁶⁹*Cumhuriyet*, 24 November 1989.

⁷⁰Although some did express reservations. Mahmut Alınak wrote that a party founded in the wake of the Kurdish conference would become a “Kurdish Party” and might distance pro-Kurdish deputies from the mainstream public; see Alınak, *Parlamentodan*, 99. Gürkan also stated (with the benefit of hindsight) that he resisted founding a party for the same reasons: personal interview, Ankara, 1994.

⁷¹See, for example, the open and generally positive coverage of the HEP’s formation in *Cumhuriyet*, *Milliyet*, and the *Turkish Daily News*.

⁷²*Cumhuriyet*, 4 March 1990; *İkibin’e Doğru*, 11 March 1990, 22.

⁷³*İkibin’e Doğru*, *ibid.* *Cumhuriyet* confirmed the figure, but how the reporters determined this is not clear.

⁷⁴*İkibin’e Doğru*, 11 March 1990, 22.

⁷⁵Personal interviews with Aydın Güven Gürkan and Murat Belge, Ankara and Istanbul, respectively, 1994. See also *Cumhuriyet*, 14 March 1990.

⁷⁶Alınak, *Parlamentodan*, 131–34. See also *Cumhuriyet*, 5 September 1991.

⁷⁷İnönü writes in his autobiography that although expelling pro-Kurdish deputies had lost the SHP representation in Parliament, a more important problem was “the widely accepted belief among our Kurdish-origin citizens in the southeast and other parts of the country that ‘the SHP administration is throwing Kurds out of the party, SHP is excluding Kurds’. Everywhere, I was trying to explain to our citizens in the new excursions that I undertook: ‘The event that occurred was a matter of discipline, it is our duty to protect party internal discipline, it is not a matter of taking a stance against Kurdish origin members.’ But no matter what I said . . . I saw that I could not make them believe me” (*Anılar ve Düşünceler*, 274).

⁷⁸*Cumhuriyet*, *Milliyet*, 6 September 1991.

⁷⁹İnönü, *Anılar ve Düşünceler*, 283.

⁸⁰An exception was the SHP’s Southeast Report of July 1990, which İnönü asserts was conducted in part to try and demonstrate to the pro-Kurdish, former SHP deputies that the party was willing to take concrete steps towards addressing the problem of the southeast and Kurdish rights. The report recommended permitting freedom of expression concerning identity and abolishing the state village guard system, among other items.

⁸¹*Cumhuriyet*, 8 October 1991.

⁸²*Ibid.*

⁸³Leyla Zana, for instance, was the wife of former Diyarbakir Mayor Mehdi Zana, who headed the leftist Kurdish group Özgürlük Yolu and had spent many years in jail for his pro-Kurdish activities. Sırrı Sakık, another new deputy, was the brother of the well-known PKK commander Şemdin Sakık.

⁸⁴*Cumhuriyet*, 1 October 1991.

⁸⁵As did Nusret Demiral. The refrain varied: General Doğan Güreş told the press that there was no need to look for the PKK in the mountains because they were under Parliament's roof: see "DEP Detention Causes Quake," *Turkish Probe*, 10 March 1994, 3.

⁸⁶The difficulty the SHP would have with its pro-Kurdish allies was vividly illustrated during the nationally televised swearing-in ceremony, when the newly elected Diyarbakir deputy Hatip Dicle said he and other HEP members were taking the oath of office only under duress, and deputy Leyla Zana added a sentence in Kurdish to her oath. She later said it was a wish for peace between Turks and Kurds. İnönü writes that when HEP members agreed to the alliance with the SHP and stated they would remain with the SHP rather than return to the HEP, "I believed in the sincerity of our old friends. But we didn't know the youths who came together with them; no one could have known what these people would do in the days to come" (*Anılar ve Düşünceler*, 283). On the swearing-in ceremony, see Alınak, *Parlamentodan*, 157–58; also *Turkish Daily News*, *Cumhuriyet*, 11 November 1991. As the first openly Kurdish woman ever elected to Parliament, Zana, in particular, attracted the attention of the press: see, for instance, *Cumhuriyet*, 23 October 1991.

⁸⁷The deputies were charged with violating Article 125 of the penal code. The article prohibits activities aimed at dividing the unity of the state or country, and allows such activities to be punished by death.

⁸⁸*Cumhuriyet*, 10 April 1992, 4; see also *Briefing*, 27 January 1992, 7.

⁸⁹*Cumhuriyet*, 12 April 1992, 5.

⁹⁰*Turkish Daily News*, 23 May 1992; *Briefing*, 25 May 1992.

⁹¹Hocaoğlu, a member of ANAP, apparently found himself under some pressure to defend his decision, insisting to *Cumhuriyet* that the decision was one made purely on the basis of his legal duties as acting speaker. In one of several stories concerning the decision, *Cumhuriyet* reported Hocaoğlu arguing that he had simply been carrying out the law and didn't have the authority not to sign the communiqué (*Cumhuriyet*, 24 and 25 May 1992, 4).

⁹²"Bonus to Nationalists and PKK from the Temporary Speaker," *Briefing*, 25 May 1992, 6–7.

⁹³Requests for lifting of parliamentary immunity were common but rarely resulted in action. *Cumhuriyet* reported on 16 October 1992 that the joint commission had created three subcommittees to handle a total of thirty-five dossiers requesting the lifting of immunity of 112 officials, including Prime Minister Süleyman Demirel, CHP Chairman Deniz Baykal, and the HEP leaders. Many of the requests, the paper noted, concerned traffic violations.

⁹⁴See İnönü's comments in *Anılar ve Düşünceler*, 285, as well as his dissenting view submitted to Parliament.

⁹⁵Along with the communiqué requesting the lifting of the twenty-two deputies' parliamentary immunity, the Public Prosecutor's Office had sent another eight communiqués asking for the lifting of immunity of three to four (depending on the petition) pro-Kurdish deputies so they might be charged with violating a law on public demonstrations and meetings. These communiqués were also rejected or put aside by the committee. For the text of the joint committee's decisions, see *TBMM Tutanak Dergisi*, Dönem 19, Cilt 54 supplementary documents (S. Sayısı 485–92 and 586–89).

⁹⁶*Cumhuriyet*, 17 July 1993. See also Ölmez, *DEP Depremi*, 256, for more concerning Cindoruk and Işıklar.

⁹⁷Demiral defended his actions in an interview with *Turkish Probe*. Conceding that he and Cindoruk, as speaker of Parliament, often seemed at odds with each other, Demiral said that although "all state bodies are equal . . . , there are times when one body is more prominent than others." He continued: "If I have to take someone into custody, even if that person is within the walls of the Parliament or if he or she is a parliamentarian, I will detain them if I have the authority to do so" (*Turkish Probe*, 26 August 1994, 2). See also Nadire Mater, "Parliament Prevents Pro-Kurdish Deputies' Arrest," Inter-Press Service, 24 June 1994.

⁹⁸*Cumhuriyet*, 25 June 1994, 5.

⁹⁹BBC, 8 November 1993. In an interview in 1998, Cindoruk stated that although the pro-Kurdish deputies' behavior had created substantial antipathy both in and outside the government, he believed they should have the right to speak freely in Parliament (personal interview, Ankara, 15 October 1998. Thanks to Ali İğmen for assistance in transcribing this interview).

¹⁰⁰BBC, 8 November 1993.

¹⁰¹See "One Man's Struggle to Finish Off Kurdish MPs," *Briefing*, 27 June 1994, 3; "DEP Detention Causes Quake," *Turkish Probe*, 10 March 1994.

¹⁰²*Cumhuriyet*, 3 March 1994, 5.

¹⁰³*TBMM Tutanak Dergisi*, Dönem 19, Cilt 54, 2 March 1994, B: 78, O: 1, 263.

¹⁰⁴*Milliyet* and *Cumhuriyet*, 3 March 1994. The *Turkish Probe* of 10 March 1994 lists the names of parliamentarians and senators who have had their immunity lifted since 1920, when the Turkish Grand National Assembly was founded. Twenty-two were members of Parliament, and eleven were members of the Republican Senate of the pre-1980 period.

¹⁰⁵*Milliyet*, 4 March 1994.

¹⁰⁶*Halkın Emek Partisi Program* 1992, 17.

¹⁰⁷See Pope and Pope, *Turkey Unveiled*, 162.

¹⁰⁸*Briefing*, 16 December 1991, 3 and 10.

¹⁰⁹In both of these election-time cases, Turkish political support for the pro-Kurdish parties was roundly condemned as political opportunism by both Kurds and conservative Turks. The DEP and HADEP were encouraged to run in the elections primarily because politicians such as Tansu Çiller believed the pro-Kurdish parties might be used to divert votes from the Islamist Refah Party, which posed a substantial threat to the DYP in the elections. For a succinct discussion of the HADEP and its performance in the 1995 elections, see Barkey and Fuller, *Turkey's Kurdish Question*, 86–88.

¹¹⁰Cited in Christ Kutschera, "Mad Dreams of Independence: The Kurds of Turkey and the PKK," *Middle East Report* (July–August 1994): 15.

¹¹¹During the June 1996 congress, masked men dropped the Turkish flag and raised a PKK banner. The event was filmed and broadcast repeatedly on Turkish television. At its November 1998 convention, the HADEP's leadership worked closely with police and its membership to ensure similar events did not occur, and in décor and tone, the convention was decidedly a HADEP (not a PKK) affair.

¹¹²Ecevit's Democratic Left Party took about 22 percent of the vote, and the ultra-nationalist National Action Party took 18 percent.

¹¹³Timothy Mitchell, "The Limits of the State: Beyond Statist Approaches and Their Critics," *American Political Science Review* 85, 1 (March 1991): 89.